

20STCV04647 20STCV04647

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-08-17

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Case Number: 20STCV04647 Hearing Date: August 17, 2026 Dept: 509

XCVI, LLC v. LACAUSA, et al.

MOTION TO AMEND JUDGMENT

MOVING PARTY: Judgment Creditor, XCVI, LLC

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff XCVI, LLC brought this action against defendants LACAUSA, LLC (LACAUSA) and Greg Lorber (Lorber, collectively Defendants), alleging causes of action for (1) breach of contract – asset purchase agreement, (2) breach of contract – guaranty, (3) accounting, and (4) unfair business practices under Cal. Bus. & Prof. Code § 17200, et seq.

Plaintiff alleged that LACAUSA and XCVI, LLC entered into an asset purchase agreement (“APA”) on August 8, 2019. In connection with the APA, Lorber and XCVI, LLC entered into a guaranty (“Guaranty”) whereby Lorber guaranteed LACAUSA’s obligations under the APA, on August 8, 2019. Pursuant to the APA, LACAUSA was to pay XCVI, LLC a total of \$727,982.97 as follows: (1) \$250,000 for Trademarks, Domain Names, and Social Media Accounts at time of closing; (2) \$88,148.05 for Samples and Related Assets; and (3) \$389,834.92 for Inventory. Plaintiff alleged that Defendants had defaulted under the APA. This suit followed.

The matter proceeded to a jury trial starting December 11, 2023. On December 14, 2023, the jury returned a unanimous verdict in XCVI, LLC’s favor, awarding XCVI, LLC \$376,144.37 for Defendants’ contractual breach.

XCVI, LLC (Judgment Creditor) now moves to amend the judgment to add various judgment debtors, whom Judgment Creditor contends are alter egos of Lorber. No opposition was filed. [FN 1]

TENTATIVE RULING:- AMENDED

Given the fact that any service issues have now been waived by certain proposed judgment debtors, and given the fact that their opposition papers have yet to have been filed in the court, and given the fact that this Court has not read nor considered the opposition papers, it is the intent of this Court to continue this matter for a brief time period, so that the opposition papers

can be filed, read and considered. NO FURTHER BRIEFING IS ALLOWED AT THIS TIME.

As to the proposed judgment debtors who have yet appeared through counsel in this matter, and apparently in an inactive status, that issue will be discussed at the August 17th hearing.

All counsel are urged to attend the August 17th hearing, either in person, or remotely.

IT IS SO ORDERED.

Dated: August 17, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Judgment Creditor filed a reply however, the opposition which it addresses is still not within the Court file. Be that as it may, this afternoon this Court received a courtesy copy of an opposition from certain proposed judgment debtors.